

PLAIN-LANGUAGE GUIDE · JUNE 2026

Appeal or Reassess? Know Which One You Need

Two different routes, two different clocks. Mixing them up can cost you. Here is how to tell which one your situation needs.

There is a lot of confusing advice going around about appealing your AISH letter. Some of it is right, and some of it mixes up two completely different things. Here is the difference, in plain language.

First, the part that calms the panic: you are still on AISH until July 2, 2026. The letters going out now tell you which program you will be on. They are notifications. Nothing has been cut yet, and you are still getting your full amount.

ROUTE 1 — REASSESS To keep AISH	ROUTE 2 — APPEAL To challenge a decision
Use this if: your letter says you are being moved to ADAP and you want to stay on AISH. What you do: apply to be reassessed for AISH. When: the reassessment route opens in summer 2026. (The program pages say June; the letters say July. If it is not open yet, try again next month.) Deadline: none. This route is not time-limited. You can use it after July too. Cost: the government covers one medical assessment. Note: this is the government's own way to keep AISH. If AISH told you not to reapply yet, that was correct, because the window was not open.	Use this if: you get a letter that states a decision about your benefits and tells you that you can appeal it and that you have 30 days. What you do: send a written Notice of Appeal to the Appeals Secretariat. It goes to the Citizen's Appeal Panel. When: within 30 days of being told of the decision and your right to appeal. You can ask for more time for a good reason. First: give AISH any new information before you file. Once you file, no new information can be added. Covers: a benefit reduced, refused, or stopped; an overpayment; a denied reassessment; a refusal to send you to the medical review panel.

HOW TO TELL WHICH ONE YOU NEED

- Read your letter. By the rules, a decision letter must say whether it can be appealed and how long you have to do it.
- If your letter only tells you which program you will be on, that is a notification, not an appealable decision. Your route to keep AISH is reassessment (Route 1). Do not rush to file an appeal off this letter.
- If your letter states a decision and gives you 30 days to appeal, that is Route 2. Act within the 30 days.

ONE MORE THING — THE MOVE ITSELF, AND THE CLOCK

The government says moving you to ADAP is automatic, so there is nothing to appeal. We do not accept that. A letter that changes which program you are on, and how much you get, is a decision about you. Someone

decided you fit the lower program instead of AISH. If a person decided it, a person can be asked to answer for it.

Here is the part that matters about timing. The right to appeal an AISH decision is alive right now, while you are still on AISH. The new rules that remove the right to appeal this exact kind of decision do not start until July 2, 2026. So the one window to challenge this as an AISH decision is before July 2. After that day, the door the law still leaves open today is shut. A 30-day clock you were never told was running, inside a window that closes the day the new program begins, is a clock most people are set up to miss.

And look at who these letters are sent to. They go to people whose disabilities can affect reading, memory, focus, and keeping up with paperwork. The letters are written in dense, formal language, they call a benefit change “automatic,” and they say “no action is required.” Nothing in them tells you a window is open, or when it closes. A notice truly built for this community would say, in plain words, that an appeal window exists and the exact date it ends. These do the opposite. Whatever the reason, the effect is the same: the people least able to catch a hidden deadline are the ones most likely to lose it.

WHAT TO DO BEFORE JULY 2

- Ask in writing for a Notice of Decision: who decided you go to ADAP instead of AISH, on what date, and under what section, with reasons. Send it to the office that issued your letter. Our companion guide, *Who Made the Determination?*, gives you the exact wording.
- If they send back a decision that says you can appeal and gives you 30 days, file the appeal right away, and before July 2. Do not wait on it.
- To keep AISH, use the reassessment route (Route 1). It has no deadline, so it is your steady path no matter what happens with the appeal question.

WHERE TO GO

Appeals Secretariat (for an actual appealable decision): phone 780-427-2709, fax 780-422-1088, 2nd Floor, Agronomy Centre, 6903 116 Street NW, Edmonton, AB T6H 5Z2. Ask them to email, fax, or mail you the Notice of Appeal form.

Office of the Advocate for Persons with Disabilities (the provincial advocate): toll free 1-800-272-8841, phone 780-422-1095, advocate.disability@gov.ab.ca. They cannot represent you at a hearing, but they help people navigate and access disability supports and raise concerns about what is going wrong.

For free help: Legal Aid Alberta, Calgary Legal Guidance (which publishes a free self-representation guidebook for AISH appeals), and community legal clinics can help. The Alberta Ombudsman (1-888-455-2756) can look at procedural failures once you have tried to resolve things through the program.

This is general information, not legal advice. Sources: Government of Alberta, AISH Policy Manual (Notice of Decision and Appealing a Decision sections; 30-day notice, extendable; only Director's decisions appealable); AISH — Appeal a Decision and Appeals Secretariat pages, alberta.ca; Citizen's Appeal Panel page (reassessment for AISH begins summer 2026, one covered medical assessment; program pages indicate June, transition letters indicate July); ADAP Fact Sheet, May 12, 2026; AR 87/2026 and AR 96/2026, both in force July 2, 2026; Office of the Advocate for Persons with Disabilities contact (alberta.ca); Bill 12 (2025).

The Alberta Disability System Breakdown — Advocate

St. Albert, Alberta | June 2026

albertadisabilitysystembreakdown.netlify.app | albertadisabilitybreakdown@outlook.com